

22SMCV02668 22SMCV02668

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TENTATIVE RULING

August 18, 2026

22SMCV02668 (Kimiabakhsh v.
Starbucks Corporation, et. al.)

RELEVANT BACKGROUND

On December 12, 2022,
plaintiff Michelle Joy Kimiabakhsh (Plaintiff) filed her complaint against Starbucks
Corporation; Ralphs Grocery Company; The Kroger Co.; Target Corporation
(Target); Westwood Market Place; ABM Parking Westwood, and Does 1-60. Plaintiff
filed a first amended complaint (FAC) on September 28, 2023.

Plaintiff alleges that
she was injured due to a slip-and-fall when she was walking from the parking
lot area of the commercial shopping center located at 10861 Weyburn Avenue, Los
Angeles, California 90024, on the evening of February 23, 2022.

Cross-Complaints

were subsequently filed by Target, Ralphs, FM, Starbucks, and Teachers
Insurance and Annuity Association of America (TIAAA). Target's operative
second amended cross complaint (SACC) was filed on October 18, 2024. TIAAA's
operative first amended cross complaint (FACC) was filed on August 19, 2025.

Relevant to the instant
motion, TIAAA alleges causes of action for Breach of Contract; Express

Indemnity; and/or Declaratory Relief. Target likewise filed a Cross-Complaint against TIAAA for Equitable Indemnity; Equitable Contribution; Express Indemnity; Breach of Contract; and Declaratory Relief.

On June 5, 2025, Plaintiff agreed to resolve her claims against Ralphs, Starbucks, TIAAA, ABB, and FM. Plaintiff's settlement rendered the cross-claims between TIAAA and Target the only remaining issues in this action.

On July 14, 2026, the Court granted Target's motion to compel Plaintiff's further responses to Requests for Production, Set One, Nos. 9-15.

INSTANT MOTION

On February 3, 2026, Target filed the instant motions to compel TIAAA's further responses to Special Interrogatories, Set One (Nos. 1, 3, and 11) and Form Interrogatories, Set One (Nos. 9.1; 9.2; 15.1; and 50.1). Target requests \$1,829.71 in monetary sanctions for each motion (\$3,659.42 total). TIAAA filed oppositions, and Target filed a replies.

MEET AND CONFER

The Court finds that Target has satisfied the meet and confer requirement. (See Levak Decl.)

DISCUSSION

I. TARGET'S MOTIONS TO COMPEL FURTHER

A. Special Interrogatories, Set One (Nos. 1, 3, and 11)

Here, Target moves to compel TIAAA's further responses to Special Interrogatories, Set One that were served on May 20, 2025. (See Levak Decl. ¶ 5, Exhibit 1.) TIAAA provided responses on August 5, 2025, without the signed verifications or any document production. (Levak Decl. ¶ 6, Exhibit 2.) After reviewing TIAAA's discovery responses, Target determined that TIAAA's discovery responses were deficient and sent a Meet and Confer Letter dated September 4, 2025, which

specifically requested that TIAAA supplement its responses to Special Interrogatories, Set One, Special Interrogatory Nos. 1, 3, and 11.

Special

Interrogatory No. 1 calls for information regarding relevant contracts, and Special Interrogatory No. 3 asks for any insurance policies on which TIAAA named Target as an additional insured. (See Levak Decl. ¶12, Exhibit 1.) Special Interrogatory No. 11 asks for facts related to any inspection of the subject premises on the date of the alleged incident. (See Levak Decl. ¶ 12, Exhibit 1.)

TIAAA

argues that the motion is moot because it served its verifications on June 26, 2026. (DeSantis Decl. ¶ 4, Exhibit G.) In reply, Target does not contest this but argues that the motion is not moot with respect to monetary sanctions. Additionally, Target maintains that the objections are without merit.

The

Court agrees with Target that TIAAA's objections are too general and without merit with respect to No. 3 and 11. (Code Civ. Proc., § 2030.300, subd. (a)(3); Levak Decl. ¶ 6, Exhibit 2.) The Court is not persuaded by TIAAA's argument in opposition that Target already has access to the information or that the requests are overly broad. But the Court agrees with TIAAA that No. 1 is overly broad because it requests "any contractual agreements related to the subject property between" TIAAA and "any person" over a four-year period and is not limited to matters relevant to the instant action.

Accordingly,

Target's motion is GRANTED with respect to Special Interrogatories No. 3 and 11 but DENIED with respect to No. 1.

B. Form Interrogatories, Set One (Nos. 9.1; 9.2; 15.1; and 50.1)

Here,

Target moves to compel TIAAA's further responses to Form Interrogatories – General, Set One (Nos. 9.1; 9.2; 15.1; and 50.1) that were served on May 20, 2025. (Levak Decl. ¶5.)

Form

Interrogatory Nos. 9.1 and 9.2 call for information regarding TIAAA's alleged

damages, and Form Interrogatory No. 15.1 asks for information underlying TIAAA's denial of material allegations and/or affirmative defenses. Form Interrogatory No. 50.1 pertains to any agreements alleged in the pleadings. (Levak Decl. ¶12, Exhibit 1.)

TIAAA

served verifications on June 26, 2026. (DeSantis Decl. ¶ 4, Exhibit G.)

The

Court agrees with Target that TIAAA's objections to Nos. 9.1; 9.2; 15.1; and 50.1 are without merit.

Nos.

9.1 and 9.2 ask about "other damages that you attribute to the INCIDENT" and the documents supporting them. TIAAA's boilerplate objections that the interrogatories are "overbroad, unintelligible, specifically as to the term 'other damages,' is burdensome, and compound" are without merit.

No.

15.1 asks TIAAA to identify each denial of a material allegation and each special or affirmative defense in TIAAA's pleadings and identify the facts, witnesses, and documents that support each. After making various objections, TIAAA responded, "All affirmative defenses are made for the specific purpose of preserving the rights of Responding Party and will be maintained until such time as discovery has been concluded. A general denial is a matter of right under Code of Civil Procedure section 431.30. The facts and discovery in this matter are yet to be concluded, and as a result, a full and complete response cannot be provided at this time. Discovery and investigation are continuing. Responding Party reserves the right to amend the above response and objections." TIAAA's response is not code-compliant, and the Court agree with Target that its boilerplate objections are without merit.

No.

50.1 asks TIAAA to identify each agreement alleged in the pleadings and provide related information. After making various objections, TIAAA responded, "Propounding Party cannot fully respond to this interrogatory as Propounding Party's Cross Complaint makes only vague references to a 'written agreement, contract, or contracts' with Ralphs. However, based on Responding Party and its counsel's understanding of this interrogatory, and presuming that Propounding Party is referring to the lease agreement that Responding Party's predecessor entered into with Ralphs on

or about November 1, 2000, regarding the Subject Premises, Responding Party will respond to this interrogatory subject to the full execution and filing of a Stipulated Protective Order regarding confidentiality. Discovery and investigation are continuing. Responding Party reserves the right to amend the above response and objections." The Court agrees with Target that the boilerplate objections are without merit, and the response is evasive because it does not respond to each of the subparts of the request, including contact information. Further, the burden was on Responding Party to seek a protective order.

Based

on the foregoing, Target's motion to compel TIAAA's further responses to Form Interrogatories, Set One (Nos. 9.1; 9.2; 15.1; and 50.1), is GRANTED.

C. Monetary Sanctions

Target's

request for monetary sanctions is GRANTED in full (\$1,829.71 per motion, \$3,659.42 total). The Court finds that monetary sanctions are appropriate and the amount requested is reasonable. (Levak Decl. ¶ 12.) The Court does not find that TIAAA acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Moving

party to give notice.